

is required. Plaintiff did not file an Opposition to the Demurrer and Motion to Strike. Without proper notice to Plaintiff, the Demurrer and Motion to Strike are **OVERRULED/DENIED** without prejudice. Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

IN RE: WRIGHT

CASE NUMBER: 26CV-0210187

Ruling on Petition for Change of Name: Petitioner Cynthia Marie Wright seeks to change her name to Katheryn Elizabeth Nickell. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

WYNHOFF VS. CITY OF REDDING

CASE NUMBER: 24CV-0204924

Tentative Ruling on Pitchess Motion: Defendant City of Redding filed a Motion for Disclosure of Peace Officer Personnel Records (Pitchess) seeking records from the County of Siskiyou regarding Plaintiff September Wynhoff. The Proof of Service attached to the motion indicates electronic service on four individuals with County of Siskiyou email addresses. The County of Siskiyou has appeared in this matter for a previous Pitchess motion and has been consistently represented by James R. Ross from Renne Public Law Group. Renne Public Law Group first appeared in a stipulation filed July 16, 2025 regarding the previous Pitchess motion and Renne Public Law Group has represented the County of Siskiyou throughout the entire previous Pitchess motion, including filing the Opposition, attending the hearing, attending the in camera review, and providing responsive records to the court. Nothing has been filed to indicate that Renne Public Law Group is no longer representing the County of Siskiyou. Siskiyou County Counsel has never appeared in this action on behalf of the County of Siskiyou.

Defendant City of Redding is again seeking records from the County of Siskiyou, but did not serve Renne Public Law Group. No Opposition to the motion has been filed. Where a party has an attorney in the action or proceeding, the service of papers must be upon the attorney instead of the party. CCP § 1015. Without proper service on the County of Siskiyou and there being no Opposition on file, the Court **DENIES** the motion without prejudice. Should Defendant City of Redding prefer a continuance of the hearing date in order to properly serve the County of Siskiyou through counsel of record, counsel may appear at the hearing to request a new hearing date. Otherwise, the Court will modify the proposed Order submitted by the City of Redding.

YATES VS. GENERAL MOTORS, LLC

CASE NUMBER: 24CV-0206692

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiff Mitchell Yates filed this Song-Beverly Consumer Warranty Act case on December 23, 2024, alleging that his 2021 GMC Sierra was defective and that GM failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. Pursuant to a CCP section 998 Offer to Compromise executed November 13, 2025, Defendant agreed to designate Plaintiff as the prevailing party and pay Plaintiff's attorney fees and costs upon motion. Plaintiff requests that the Court award \$38,286.73 in attorney fees and costs, plus a 0.3 multiplier, for a total award of \$47,996.98. GM opposes hourly rates, total hours, and costs. GM requests an award not exceeding \$8,437.05 in fees plus \$435.00 in costs.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and

multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

Here, GM challenges 38.1 of 53.6 claimed attorney hours as unreasonably incurred. The Court finds the attorney hours detailed in the verified time records are reasonably incurred with the following exceptions: 1) \$3,900 described as a flat fee for all services rendered by counsel prior to the preparation of Plaintiff's Complaint – the Court finds this unreasonable as the billing description is generic and duplicative of later entries, and the flat fee is excessive considering the work performed, 2) 1 hour for "reviewing time slips entries for accuracy and clarity" as this is clerical work attributable to overhead.

GM also objects to an additional 9 hours or \$4,050.00 of anticipated time for work on this motion, arguing they are improper because the work had not been actually performed at the time of filing. The California Supreme Court has held that the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys' fee application, and in the court's fee award." *Serrano v. Unruh*, 32 Cal.3d 621, 631. However, the Court notes that the Declaration of Nadia Alam details anticipated costs as consisting of: 1) 4 hours to review the Opposition and 2 hours preparing for and attending the motion hearing (\$2,700), and 2) 3 hours (\$1350.00) to review Defendant's Motion to Tax Costs and preparing an Opposition. There is no separate pending motion to tax costs, the costs arguments are all addressed in the opposition to the motion for attorney fees so the Court will deduct \$1,350.00. In total, the Court is approving 58.6 attorney hours on this matter.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval of rates ranging from \$600 for the senior partner, to \$450 for an associate. Counsel provides details on each attorney's education and experience. Counsel also supports their requested rates by citing other California attorney rates, as well as decisions from other courts where their rates have been approved. These other courts include San Diego, Contra Costa, Merced, Riverside, and Los Angeles County Superior Courts. However, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. Additionally, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or

decreased. Such an adjustment is commonly referred to as a “fee enhancement” or “multiplier.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has “set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: ‘(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.’” *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

The Court has considered the factors listed above and declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action in which both sides are well versed and relying largely on form pleadings and discovery. While the Court acknowledges the attorneys’ skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsel’s standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff seeks \$5,919.23 in costs. GM requests a reduction of \$5,484.23 in costs. The Court finds that Plaintiff’s costs are recoverable and reasonably incurred with the exception of \$430.21 for Item 14 (this Court does not support electronic filing, and it is unclear how this Item is different from fees incurred for Item 1), and Item 15 which is not described. Costs of \$5,489.02 are awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$23,440.00 and costs of \$5,489.02 are awarded, for a total of \$28,929.02. No proposed order has been lodged as required by Local Rule 5.17(D). Plaintiff shall submit the order.

The Court notes that the matter is calendared on July 6, 2026 for a review hearing. The July 6, 2026 review hearing is **VACATED**. The matter will be on calendar on **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of dismissal. If the matter is not dismissed by September 8, 2026, the parties are ordered to file status statements at least five court days prior to September 8, 2026.

9:00 a.m. – Review Hearings

ALPINE BLUE VS. HURLEY, ET AL

CASE NUMBER: CVCV21-0198057

This matter is on calendar for review regarding status of judgment or dismissal. The matter has not been dismissed. The matter is continued to **Monday, August 31, 2026 at 9:00 a.m. in Department 63** for status of judgment or dismissal. If the file has not been closed by the next hearing, Plaintiff and any party that filed a Cross-Complaint is ordered to file a status statement no less than five court days prior to the hearing that outlines what is still pending and when a dismissal will be filed. **No appearance is necessary on today’s calendar.**

AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.

CASE NUMBER: 23CV-0202392

This matter is on calendar for review regarding status of judgment/dismissal. The Court notes that a Notice of Settlement was filed on August 27, 2025. A minor’s compromise petition has not been filed for the minor plaintiff despite the Court continuing the matter two months for counsel to file. **An appearance is necessary on today’s calendar.**